

Court.

Sanctions

1. Defendant's failure to respond to the RFAs even after the deadline to do so had passed and demands for responses were made constitutes failing to respond to an authorized method of discovery, pursuant to Code of Civil Procedure section 2023.010(d).
2. Defendant's failure to respond to meet and confer efforts regarding the RFAs constitutes failing to confer with an opposing party or attorney in a reasonable and good faith attempt to resolve informally any dispute concerning discovery, pursuant to Code of Civil Procedure section 2023.010(i).
3. The Court finds that the foregoing conduct by Defendant constituted conduct that was a misuse of the discovery process within the meaning of Code of Civil Procedure section 2023.030 and that such conduct warrants the imposition of monetary sanctions. In failing to timely respond to the RFAs, the Court finds that Defendant did not act with substantial justification.
4. Moreover, monetary sanctions are mandatory pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(c).

Disposition

The Court further finds and orders as follows:

1. The Motion to Deem Admissions is GRANTED.
2. The truth of the facts recited in RFA Nos. 1 through 5 and RFA Nos. 7 through 9 are DEEMED ADMITTED by Defendant.
3. The genuineness of the document attached as Exhibit A to the RFAs, pursuant to RFA No. 6, is DEEMED ADMITTED by Defendant.
4. Defendant shall pay monetary sanctions to Plaintiff in the amount of **\$360.00** (the "Monetary Sanctions"). The Court finds that the Monetary Sanctions are reasonable expenses, including attorneys' fees, incurred by Plaintiff as a result of the foregoing conduct by Defendant. In fixing said amount, the Court has considered all evidence in the record before the Court, including the Supporting Declaration. The Monetary Sanctions shall be paid within thirty (30) days from notice of entry of this order.
5. A proposed form of order was lodged with the Court which the Court shall execute and enter.

4. 9:00 AM CASE NUMBER: L23-04878
CASE NAME: DISCOVER BANK VS. JOSIAH RAMIREZ
***HEARING ON MOTION IN RE: ENTER JUDGMENT PURSUANT TO CCP 6646**
FILED BY: DISCOVER BANK

TENTATIVE RULING:

Plaintiff Discover Bank (“Plaintiff”) filed a Motion to Enter Judgment on September 24, 2025 (“Motion to Enter Stipulated Judgment after Default”). The Motion to Enter Stipulated Judgment after Default was set for hearing on December 2, 2025.

Background

The parties entered into that certain settlement agreement filed on January 26, 2024 (the “Settlement Agreement”), the terms of which included payment by the defendant Josiah Ramirez (“Defendant”) in the amount of \$11,303.03, to be paid in accordance with the terms thereof (the “Payment Terms and Conditions”). See Declaration of Plaintiff’s Counsel filed September 24, 2025 (“Supporting Declaration”), ¶4 and **Exhibit A** thereto. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the amount of \$16,078.28 plus costs in event of a default. *Id.*, **Exhibit A**, ¶¶2-3 and 6.

Defendant defaulted on the Payment Terms and Conditions. See Supporting Declaration, ¶7. No notice or opportunity to cure is required under Settlement Agreement. Settlement Agreement, ¶6.

After credit for amounts paid, there remains \$12,310.68 due and owing, plus costs of \$505.70. See Supporting Declaration, ¶7.

Analysis

Defendant was duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion.
2. The Court finds that Defendant is in default of the Settlement Agreement.
3. The Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$12,310.68, plus costs of \$505.70, for a total judgment of \$12,816.38.
4. Plaintiff to submit revised forms of order and money judgment which appropriately designate plaintiff’s current legal name (e.g. “Capital One, N.A., successor by merger to Discover Bank”). If no order for leave to amend plaintiff’s name has been previously been entered, leave is hereby granted and the operative complaint deemed so amended. The proposed order shall recite such amendment. The Court takes judicial notice of the “NOTICE OF PLAINTIFF MERGER” filed in multiple pending cases before the Court regarding the merger.